



File No.: EXP202303458

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: The claimant exercised the right of Erasure against the respondent, and their request, as stated by the claimant, did not receive the legally established response.

The claimant provides various documents related to the complaint filed with this Agency and regarding the exercise of the right exercised.

SECOND: Once the procedure established in Article 65.4 of the LOPDGDD was fulfilled, the complaint was admitted for processing, and the respondent entity was granted a hearing period, to present any arguments they deemed appropriate within ten working days.

The respondent entity has not demonstrated, during the formalized procedures, that it has responded to the request for the exercise of rights presented by the claimant.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

Likewise, the internal legal framework, in Article 65.4 of the LOPDGDD, has provided a mechanism prior to the admission of complaints filed with the Spanish Agency for the Protection of Data, which consists of forwarding them to the data protection officers designated by the data controllers or processors, for the purposes provided in Article 37 of the aforementioned regulation, or to them when they have not designated any, so that they can analyze these complaints and respond to them within one month.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, it was forwarded to the responsible entity for analysis, to respond to this Agency within one month and to demonstrate that it had provided the claimant with the due response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

The result of this forwarding did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on May 6, 2023, for the purposes provided in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing. This admission agreement determines the opening of the present procedure for the lack of

attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the claimant. After this period, the interested party may consider their complaint accepted.”

The clarification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, whose exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

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It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure the guarantees and rights of the claimant are duly restored.

III

Rights of individuals regarding the protection of personal data

The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication directed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

Regarding the right of access to personal data, in accordance with Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the controller provides remote access to the data, thus fulfilling the request (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive more than once during a period of six months, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

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Conclusion

In the case analyzed here, the claimant exercised their right to Deletion regulated in Article 17 of the GDPR and Article 15 of the LOPDGDD.

After the period established in accordance with the aforementioned regulations, their request did not receive the legally required response. The entity being claimed has not attended to the request of the claimant nor the requirements that have been sent to it by this Agency.

The aforementioned regulations do not allow the request to be overlooked as if it had not been made, leaving it without the response that the controllers must issue, even in cases where there are no data of the data subject in the entity's files or even in those cases where the requirements are not met, in which case the recipient of such request is also obliged to require the correction of the observed deficiencies or, if applicable, deny the request with reasons indicating the causes for which it is not appropriate to consider the right in question.

Therefore, the request made obliges the controller to provide an express response, in any case, using any means that justifies the receipt of the response.

Since a copy of the necessary communication that must be directed to the claimant informing them about the decision made regarding the request for the exercise of rights has not been provided, it is appropriate to uphold the complaint that originated this procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by A.A.A. considering that the provisions of Article 17 of the GDPR have been infringed and to urge OSBE CONSULTING, S.L., with NIF B88089958, to send to the claimant a certification within ten working days following the notification of this resolution, addressing the exercised right of Deletion or denying it with reasons indicating the causes for which it is not appropriate to attend to the request, in accordance with the provisions established in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could lead to the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to OSBE CONSULTING, S.L.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure (Article 18.4 of the LOPD), and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, a voluntary appeal for reconsideration may be filed before the Director of the Spanish Agency for Data Protection, within one month from the day following the notification of this resolution, or directly an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the Fourth Additional Provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned legal text.

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Mar España Martí

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